

LEGAL TERMS

Terms of Service

Effective Date: September 1, 2026 • **Last Updated:** September 9, 2026 • **Version:** 2.4

Please read carefully: These Terms of Service ("Terms") constitute a legally binding agreement between you (or the legal entity on whose behalf you act, "Merchant", "Customer", or "User") and Softivite Technologies ("Puxbay", "Company", "we", "us"). By accessing or using the Puxbay website, POS systems, inventory engine, e-commerce storefront, API, or administrative dashboard, you agree to be bound by these Terms.

1. Acceptance & Eligibility

By registering for an account or using any component of the Puxbay platform, you represent and warrant that:

- You are at least 18 years of age or the legal age of majority in your jurisdiction.
- You have the legal authority to bind your organization or business entity to these Terms.
- All registration information you submit is accurate, current, and complete.
- Your use of the Service does not violate any applicable law, regulation, or industry compliance mandate.

2. Description of Services & Multi-Tenant SaaS

Puxbay provides an integrated Software-as-a-Service (SaaS) business management and commerce platform encompassing:

- **Cloud & Offline Point of Sale (POS):** In-person order taking, cash/card register reconciliation, receipt generation, and offline-first transaction synchronization.
- **Inventory & Multi-Warehouse Management:** SKU tracking, automated restock alerts, supplier purchase order generation, and stock transfers.
- **E-Commerce Storefront Engine:** Online catalog publishing, shopping cart checkout, and digital order processing.
- **Business Intelligence & AI Analytics:** Sales trend reporting, revenue forecasting, inventory velocity diagnostics, and telemetry logs.
- **Staff & Role Management:** Role-based permissions, shift logging, time tracking, and multi-user access controls.
- **Supplier & Procurement Portal:** Vendor order confirmations, delivery status updates, and catalog synchronization.

3. Account Registration, Security & Tenant Governance

You are responsible for maintaining the confidentiality of your account credentials, API keys, and staff PIN codes. You agree that:

- You are solely responsible for all activities occurring under your tenant account, including actions performed by your invited staff members, managers, and cashiers.
- You must immediately notify Puxbay of any unauthorized use or security breach involving your account.
- You will enforce proper role permissions for your team members according to the principle of least privilege.

4. Subscriptions, Fees, Billing & Taxes

A. Subscription Plans & Billing Cycles

Certain features are billed on a recurring subscription basis (e.g., Starter, Pro, Enterprise, monthly or annual billing). Subscriptions renew automatically unless canceled prior to the renewal date.

B. Payment Processing & Invoicing

You authorize Puxbay (and our third-party payment processors) to charge your designated payment method for all applicable fees, add-on features, and transaction surcharges. All fees are quoted in USD (or your local supported currency) and are non-refundable except where required by law.

C. Taxes

You are responsible for calculating, collecting, reporting, and remitting all applicable sales taxes, value-added taxes (VAT), goods and services taxes (GST), and duties arising from your store sales and customer transactions.

5. POS Hardware, Offline Operations & Payment Processing

A. Offline-First Capability

Puxbay offers offline POS operations allowing sales processing during network interruptions. You acknowledge that offline transactions are cached locally on your device and synchronized when reconnected. You remain responsible for maintaining adequate local hardware security and promptly reconnecting devices to prevent data sync delays.

B. Payment Processing Compliance

When processing card payments, you agree to comply with Payment Card Industry Data Security Standards (PCI-DSS). You must never store unencrypted Primary Account Numbers (PAN), CVVs, or sensitive authentication data on your local hardware or in plain text notes.

6. Storefront & Merchant Obligations

When operating an online storefront or selling goods and services through Puxbay:

- **Merchant of Record:** You are the sole merchant of record for all goods and services sold to your customers. Puxbay is not a buyer, seller, or marketplace facilitator.
- **Fulfillment & Customer Service:** You are solely responsible for order fulfillment, shipping, returns, customer refunds, warranties, and addressing customer disputes.
- **Truthful Advertising:** You warrant that all product listings, descriptions, prices, and inventory availability are accurate and not misleading.

7. Acceptable Use Policy (AUP) & Restrictions

You agree not to use Puxbay for any prohibited or illegal activities, including but not limited to:

- Selling illegal weapons, controlled illicit substances, counterfeit goods, or unauthorized copyright material.
- Engaging in fraudulent sales practices, deceptive pricing, pyramid schemes, or money laundering.
- Attempting to probe, scan, reverse engineer, decompile, or breach the security or vulnerability of Puxbay infrastructure.
- Interfering with multi-tenant data separation or attempting unauthorized access to another tenant's data.
- Injecting malicious software, viruses, worms, or automated scraping bots into the platform.

8. Proprietary Rights & Customer Data Ownership

A. Puxbay Intellectual Property

Puxbay, its trademarks, software source code, UI designs, algorithms, APIs, and documentation remain the exclusive intellectual property of Softivite Technologies and its licensors. You receive a limited, non-exclusive, non-transferable, revocable license to access the platform during your subscription term.

B. Tenant Data Ownership

You retain full ownership of all data, product catalogs, customer records, and transaction histories that you upload or generate within your Puxbay tenant ("Tenant Data"). You grant Puxbay a worldwide, non-exclusive license to host, store, and process Tenant Data solely as necessary to provide, secure, and improve the Service.

9. Service Level, Maintenance & Uptime

We strive to maintain a 99.9% uptime for our cloud services. However, Puxbay does not guarantee uninterrupted service. Scheduled maintenance, emergency security patches, or telecommunications disruptions beyond our control may result in temporary service interruptions.

10. Term, Suspension & Termination

- **Termination by You:** You may cancel your subscription or terminate your account at any time via your account settings.
- **Termination by Puxbay:** We reserve the right to suspend or terminate your account immediately if you breach these Terms, fail to pay subscription fees, or engage in activity that threatens system security.
- **Data Export on Termination:** Upon termination, you may request an export of your store and transaction data within thirty (30) days, after which Puxbay may permanently purge your data in accordance with our data retention schedule.

11. Disclaimer of Warranties

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, THE PUXBAY SERVICES ARE PROVIDED ON AN "AS IS" AND "AS AVAILABLE" BASIS, WITHOUT WARRANTIES OF ANY KIND, EXPRESS, IMPLIED, STATUTORY, OR OTHERWISE, INCLUDING WITHOUT LIMITATION WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, NON-INFRINGEMENT, OR UNINTERRUPTED AVAILABILITY.

12. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY LAW, IN NO EVENT SHALL SOFTIVITE TECHNOLOGIES., PUXBAY, ITS DIRECTORS, EMPLOYEES, AFFILIATES, OR SUPPLIERS BE LIABLE FOR ANY INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, OR PUNITIVE DAMAGES (INCLUDING LOSS OF PROFITS, REVENUE, DATA, INVENTORY, OR BUSINESS INTERRUPTION) ARISING OUT OF OR IN CONNECTION WITH THE USE OF OR INABILITY TO USE THE SERVICE. OUR TOTAL AGGREGATE LIABILITY SHALL NOT EXCEED THE TOTAL AMOUNT PAID BY YOU TO PUXBAY IN THE TWELVE (12) MONTHS PRECEDING THE EVENT GIVING RISE TO THE CLAIM.

13. Indemnification

You agree to defend, indemnify, and hold harmless Softivite Technologies, Puxbay, its officers, employees, and agents from any claims, liabilities, damages, losses, and expenses (including reasonable legal fees) arising out of your use of the platform, your products/store operations, customer disputes, or violation of these Terms.

14. Governing Law & Dispute Resolution

These Terms shall be governed by and construed in accordance with the laws of the State of Delaware, United States (or the jurisdiction where Softivite Technologies is registered), without regard to its conflict of law principles. Any dispute arising out of or relating to these Terms shall be resolved through binding arbitration or competent courts having jurisdiction.

15. Contact Information

For inquiries regarding these Terms of Service, please contact:

Softivite Technologies / Puxbay Legal Team

Email: legal@softivite.com

Support: support@puxbay.com

Website: <https://puxbay.com>

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